



Haverhill

Economic Development and Planning
Jacki Byerley, Planning Director
jbyerley@haverhillma.gov
Phone: 978-374-2330

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To: City Council

From: Jacki Byerley, AICP, Planning Director *JB*

Re: Zoning Ordinance and Map amendment - Battery Energy Storage Systems

Date: May 14, 2026

Following review of the proposed amendment to Chapter 255 of the City of Haverhill Zoning Ordinance to add a new Section 7.9 entitled "Battery Energy Storage Systems" ("BESS"), the Planning Board forwards a favorable recommendation to the City Council for adoption of the ordinance as drafted.

The proposed ordinance establishes a comprehensive local regulatory framework governing the siting, permitting, construction, operation, maintenance, and decommissioning of Battery Energy Storage System facilities within the City. The ordinance is intended to address emerging energy infrastructure technologies while ensuring that appropriate public safety, environmental and land use protections are in place.

The ordinance appropriately distinguishes between small-scale accessory systems and larger utility-scale facilities through the establishment of Tier 1, Tier 2, and Tier 3 classifications based on system capacity and operational characteristics. Smaller Tier 1 systems are permitted by right subject to Site Plan Review and applicable code requirements, while larger Tier 2 and Tier 3 facilities require a Special Permit and are limited to the proposed BESS Overlay District.

The Planning Board finds that the ordinance incorporates significant public safety standards consistent with current industry practices and guidance issued by the Massachusetts Department of Energy Resources ("DOER"). The ordinance requires compliance with all applicable building, fire and electrical codes.

The ordinance further provides the City Council, acting as the Special Permit Granting Authority, with the ability to review larger-scale proposals on a case-by-case basis through the Special Permit and Development Review process to ensure that impacts to surrounding properties and neighborhoods are appropriately addressed.

Accordingly, the Planning Board respectfully recommends that the City Council vote to adopt the proposed Battery Energy Storage Systems Ordinance and Overlay District as drafted.